

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GENEVEVE TORIO,

Petitioner

VS.

EDWIN JONATTAN VENCES,

Respondent

) Case Number: FMS-25-387571

) Hearing Date: June 25, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Genevieve Torio (Mother) and Respondent Edwin Jonattan Vences (Father) have one minor child together, Catalina (DOB 8/23/2023, age 3). Mother lives in San Francisco. Father lives in Houston, Texas.
- 2) On 9/3/2025, the Court entered a Stipulation and Order for Personal Conduct Orders, which includes a “non-CLETS stay away agreement” that requires Father to stay 100 yards away from Mother and to not abuse Mother. The order expires on 8/27/2026.
- 3) At a 11/4/2025 hearing, the Court found that Father had committed domestic violence against Mother as defined by Family Code section 6203 and awarded sole legal and sole physical custody to Mother. The Court ordered Father to have parenting time consisting of video calls and in person, professionally supervised visitation.
- 4) At a 3/3/2026 review hearing, the Court maintained the custody and parenting time order. The Court ordered that Father may use a different court- or Family Court Services-approved professional supervisor, so long as he uses the same individual for each visit. The Court further

1 ordered Father to delete all unauthorized recordings and denied Mother's request for attorney
2 fees.

- 3 5) On 2/17/2026, Father filed a Request for Order for a change of visitation, seeking the removal of
4 professional supervision to provide for more flexibility and to decrease costs. He also asks for
5 makeup time for the loss of visits that occurred between January through March 2026, which he
6 states occurred because of Mother and the professional supervisor's conduct. Father asks the
7 Court to admonish Mother for interfering with his Zoom calls. He also states he received an email
8 of intimidation and harassment from her attorney to "delete all recording videos" that same night.
- 9 6) On 2/25/2026, Mother filed an updated declaration in which she details the problems that have
10 occurred since the last hearing. Mother requests that (a) the Zoom video calls be reduced to once
11 per week, (b) that the in-person, professionally supervised visits be reduced to one day per month,
12 (c) that Father pay attorney fees and sanctions, (d) that he enroll in a 52-week batterers'
13 intervention program, and (e) that he be ordered not to record any Zoom video calls and to delete
14 all video call recordings that he has not yet deleted.
- 15 7) On 4/2/2026, Father filed a Request in which he requests makeup time, admonishments, and the
16 removal of professional supervision. He includes reports from two supervised visits, both of
17 which show positive interactions with Catalina.
- 18 8) On 6/22/2026, Mother filed a responsive declaration in which she states that there have been only
19 two professionally supervised visits to date, on 11/29/2025 and 12/27/2025. She states she
20 completed and submitted her intake packet with a new professional supervisor, who informed her
21 that he was waiting to hear back from Father. According to Mother, Father then told her he was
22 going to work with a different provider; he then told her he was going to work with Rally Family
23 Visitation Services (Rally). Mother states that to date, Rally has not contacted her. She states that
24 Father has not shown any change of circumstances that would justify granting his requests. She
25 asks for the Thursday Zoom calls be moved to Wednesday at 6:30-6:45 (PST) to better
26 accommodate Catalina's schedule. She asks that the Zoom calls be canceled and not rescheduled
27 if Father does not log on within 5 minutes of the start time.
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1 **B. Findings and Orders**

2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.

6 2) The Court finds it is in Catalina's best interests to maintain the current custody and parenting time
7 order, with no changes. Both parties' requests are denied.

8 3) The Court will prepare the Findings and Order After Hearing.
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